# BEFORE THE HON'BLE DISTRICT CONSUMER DISPUTES REDRESSAL COMMISSION, GHAZIABAD

## ACKO CASE — CONCISE SUBMISSION ON THE ONLY REMAINING POINT OF DIFFERENCE

Hon'ble Sir/Madam, ACKO and I are in agreement on substantially all facts and issues in this matter.

There is only one point on which my respectful submission differs from ACKO:

**POLICY SCHEDULE — PAGE 36 / C-01**

**"ANY SURGERY OF THE GENITOURINARY SYSTEM UNLESS NECESSITATED BY MALIGNANCY."**

IMPORTANT CLARIFICATION: I do NOT contend that BXO itself is malignancy (cancer).

**BXO ≠ MALIGNANCY**
**However, BXO is a condition carrying a MEDICALLY RECOGNISED RISK OF MALIGNANCY / PENILE CANCER.**

### THE MEDICAL RECORD SUPPORTS THIS

• Biopsy — Annexure C-09, Page 98: "Consistent with Lichen sclerosus (Balanitis Xerotica Obliterans)" — BXO.

• Dr. Vaibhav Saxena, M.Ch. Urology (AIIMS), Page 16: certified it as a "PRE-MALIGNANT CONDITION"; surgery "WAS MUST", "NOT ELECTIVE OR COSMETIC"; and stated there was a "RISK OF PENILE CANCER" if untreated.

• Hospital Record — Page 14: "POOR FLOW OF URINE" and "TIGHT PHIMOSIS WITH BALANITIS WITH MEATAL STENOSIS" — confirming that the surgery was medically necessary, not cosmetic/elective.

### SIGNIFICANCE OF THE INSURANCE OMBUDSMAN'S DECISION

The Insurance Ombudsman treated the treatment as MEDICALLY NECESSARY and found Permanent Exclusion Clause 4.2.3 inapplicable. The deficiency identified at that stage principally concerned post-operative medical documentation. That gap has now been addressed by the treating specialist's certificate. — Ombudsman Decision, Page 115.

**My question is NOT: "Did I have cancer?" — Answer: No.**

My question is: Can a PRE-MALIGNANT CONDITION, carrying a medically recognised risk of malignancy and requiring treatment certified as necessary by the treating specialist, be completely ignored while applying the policy exception "UNLESS NECESSITATED BY MALIGNANCY"?

### CONTRA PROFERENTEM — ALTERNATIVE SUBMISSION

If the policy wording is found to contain a genuine ambiguity capable of two reasonable interpretations, the principle of CONTRA PROFERENTEM may require the ambiguity to be construed against the party that drafted the policy — here, the insurer — and in favour of the insured. This principle applies only where genuine ambiguity exists.

Therefore, if the Commission finds a genuine ambiguity in the scope of the above exception, I respectfully request that the policy be construed in favour of the insured.

### MY RESPECTFUL PRAYER

I am not asking ACKO to create any new condition. I am only requesting that ACKO's own written POLICY EXCEPTION be applied to the actual medical facts of my case.

**BXO ≠ MALIGNANCY → RECOGNISED MALIGNANT RISK → MEDICALLY NECESSARY TREATMENT**

I therefore respectfully pray that the Commission consider this medical chain and, where applicable, the principle of CONTRA PROFERENTEM, interpret the policy exception appropriately, and direct payment of my ₹37,358/- claim.

Thank you.